Legally relevant meaning of …	*Sameness–differences conception*	*Inequality conception*
'Discrimination'	Formalistic meaning (i.e., differential treatment)	Substantive meaning (i.e., systematic disadvantage)
'Sex'	Biological meaning (i.e., biological difference)	Social meaning (i.e., gender)

An analytical category is gendered (for critical feminist analytical purposes) if but not only if its members are socially positioned as subordinate or privileged along some dimension (economic, political, legal, social, etc.) due to (actually or potentially) observed or imagined bodily features presumed (taken, suspected, expected, etc.) to be evidence of a (present, previous, or future) body socially interpreted as sexed one way or another.

Gender categories